

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MICHAEL MACK,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER PATRICK ODONNELL, Shield No. 27349, LIEUTENANT CHERYL C. SHEA, and POLICE OFFICERS JOHN DOES #1-10 (names and numbers of whom are unknown at present),

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates New York County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 11, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER PATRICK ODONNELL, Shield No. 27349, 25th Precinct, 120 E 119th St, New York, NY 10035
LIEUTENANT CHERYL C. SHEA, 25th Precinct, 120 E 119th St, New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

MICHAEL MACK,

Plaintiff,

-against-

POLICE OFFICER PATRICK O'DONNELL, Shield No. 27349, LIEUTENANT CHERYL C. SHEA, and POLICE OFFICERS JOHN DOES #1-10 (names and numbers of whom are unknown at present),

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff MICHAEL MACK, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 16, 2016 at approximately 5:00 p.m., plaintiff Michael Mack was lawfully present in the vicinity of 1900 Lexington Avenue, New York, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Additionally, plaintiff was assaulted, battered, and subjected to the use of excessive force by the defendant police officers when slammed him and dragged him along the ground, causing plaintiff to suffer severe pain and physical injuries. Plaintiff was maliciously prosecuted and denied the right to due process and a fair trial. All criminal charges brought against plaintiff were dismissed and terminated in plaintiff's favor on or about October 28, 2016. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York

PARTIES

2. Plaintiff MICHAEL MACK is a resident of the state of New York.

3. Defendant POLICE OFFICER PATRICK ODONNELL, Shield No. 27349, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER PATRICK ODONNELL, Shield No. 27349, is and was at all times relevant herein, assigned to the 25th Precinct.

5. Defendant POLICE OFFICER PATRICK ODONNELL, Shield No. 27349, is being sued in his individual and official capacity.

6. Defendant LIEUTENANT CHERYL C. SHEA and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant LIEUTENANT CHERYL C. SHEA is and was at all times relevant herein, assigned to the 25th Precinct.

8. Defendant LIEUTENANT CHERYL C. SHEA is being sued in her individual and official capacity.

9. Defendants New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Defendants Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On August 16, 2016, at approximately 5:00 a.m., plaintiff was lawfully present in the vicinity of 1900 Lexington Avenue, New York, NY, when the defendant police officers unlawfully stopped, questioned, frisked and falsely arrested plaintiff without reasonable suspicion, probable cause, or any legal justification.

16. On August 16, 2016 at approximately 5:00 pm plaintiff was lawfully walking in the vicinity of 1900 Lexington Avenue, New York, NY, when he observed defendants, arresting his younger brother.

17. Plaintiff approached the officers, advised them that they were arresting his younger brother, and asked them why his brother was being arrested, but the police officers refused to provide him with any information and told plaintiff to mind his own business.

18. Plaintiff lived in the apartment building located in the proximity of where his brother was being arrested and plaintiff went inside the building to his apartment to retrieve his identification card. Thereafter, plaintiff intended to go to the 25th Precinct to file a complaint against the officers and to inquire about why his brother was arrested.

19. After plaintiff retrieved his identification card from his apartment, plaintiff lawfully exited his building with the intent of walking to the 25th Precinct.

20. Plaintiff began walking toward the 25th Precinct when, without provocation or legal justification defendants approached plaintiff, physically grabbed plaintiff, and slammed plaintiff to the ground with force that was so extreme and unreasonable that it caused plaintiff's foot to come out of one of the shoes he was wearing.

21. The police officers unlawfully handcuffed plaintiff, falsely arrested/imprisoned him, unlawfully searched him.

22. Then, without provocation or a legal basis, defendants dragged plaintiff along the ground to the 25th Precinct while plaintiff was handcuffed.

23. Plaintiff was crying out in pain as the officers dragged him across the ground and told the officers that they were causing his foot to suffer extreme pain.

24. The officers dragged plaintiff along the ground for approximately 1.5 blocks to the 25th Precinct, causing plaintiff extreme pain to his body, including but not limited to his foot.

25. Plaintiff was unlawfully fingerprinted, photographed, and detained in a holding cell at the 25th Precinct.

26. At no time did the officers recover any drugs, weapons or contraband from plaintiff, nor did they have probable cause to arrest plaintiff.

27. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

28. At the 25th Precinct, plaintiff was photographed, fingerprinted and then placed in a holding cell by the defendants.

29. After several hours in custody, plaintiff was transported from the 25th Precinct to Manhattan Central Booking and placed in a holding cell.

30. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff physically interfere with a police investigation, which allegedly led them to believe that plaintiff committed a crime.

31. Defendants transported plaintiff to New York County Central Booking where he was unlawfully detained in larger holding cells for many hours.

32. Defendant Police Officer Patrick Odonnell signed a criminal court complaint under penalty of perjury that contained false, misleading and incomplete allegations against plaintiff and that was used to initiate a criminal prosecution against plaintiff and charge him with crimes he did not commit.

33. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

34. On August 17, 2016 at 11:00 pm, after being unlawfully detained for approximately 30 hours, plaintiff was arraigned in New York County Criminal Court.

35. The officers maliciously charged plaintiff with the crime of Obstructing Governmental Administration, a crime they knew he did not commit and for which they possessed no objective evidence to support the allegation that he committed the crime.

36. The officers fabricated allegations about their basis for arresting plaintiff and communicated the fabricated allegations to the New York County District Attorney's Office.

37. Specifically, the officers falsely alleged that plaintiff walked through an area where several officers were standing and searching for evidence and that plaintiff refused to leave the area.

38. Notably, the allegations against plaintiff contained in the criminal court complaint were not even the same allegations contained in the arrest report generated by the officers about plaintiff's arrest.

39. The arrest report states that plaintiff as arrested because he was screaming profanities on the sidewalk, causing public alarm and a crowd to gather.

40. The allegations contained in plaintiff's arrest report as well as the allegations contained in the criminal court complaint were fabricated by the defendants.

41. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the officers possess an objective factual basis to reasonably believe he committed a crime or violated the law.

42. Plaintiff was released on his own recognizance at arraignment and was ordered to return to Court on October 24, 2016.

43. Plaintiff's criminal defense attorney filed a motion to dismiss the charges brought against plaintiff because the defendant police officers allegations against him were facially insufficient to accuse plaintiff of committing the crime they charged him with.

44. The District Attorney's Office declined to oppose plaintiff's motion to dismiss because it agreed with the arguments contained in the motion.

45. Plaintiff was forced to appear in court on two additional occasions until all charges were dismissed by motion of the District Attorney on October 28, 2016.

46. On October 28, 2016 all charges brought against plaintiff were dismissed and sealed in their entirety after the District Attorney's office affirmatively moved to dismiss all charges brought against plaintiff.

47. The defendant police officers that did not physically touch plaintiff but observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law by their fellow officers and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, assault, battery, excessive force, malicious prosecution, and denial of due process/ the right to a fair trial against plaintiff are liable to plaintiff for their failure to intervene.

48. The unlawful search, false arrest, and false imprisonment, malicious prosecution, denial of a right to fair trial, assault, battery, and excessive force used against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, and falsely imprisoned plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION**Unlawful Stop, Question, and Frisk**

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

59. The conduct of defendants in stopping, frisking, and searching plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION**Unlawful Search**

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

65. Defendants lacked probable cause to search plaintiff.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

71. Defendants commenced and continued a criminal proceeding against plaintiff.

72. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

73. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

74. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The use of excessive force by defendants slamming plaintiff and dragging him along the ground, and by using unreasonable force throughout the course of plaintiff's arrest is an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

79. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION
Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein

82. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

83. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

84. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

85. In withholding/creating false evidence against plaintiff Michael Mack, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

86. As a result of the foregoing, plaintiff Michael Mack, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION**Failure to Intervene**

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

91. Defendants failed to intervene to prevent the unlawful conduct described herein.

92. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

93. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

96. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

Dated: New York, New York
June 11, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER PATRICK O'DONNELL, Shield No. 27349, 25th Precinct, 120 E
119th St, New York, NY 10035
LIEUTENANT CHERYL C. SHEA, 25th Precinct, 120 E 119th St, New York, NY
10035

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 11, 2019

/s/
DAVID M. HAZAN